

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
September 18, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
9:00 AM Line 1 23-CIV-02308	TEG PARTNERS, LLC VS. BRAD J LUCAS, ET AL
TEG PARTNERS, LLC BRAD J LUCAS	CHARLES H. RIBLE ELIZABETH M. PAPPY

Plaintiff's (Amended) Demurrer to Defendants' First Amended Answer to the Verified Fifth Amended Complaint

TENTATIVE RULING:

Plaintiff Teg Partners, LLC's Demurrer to Defendants Brad J. Lucas' and Melanie Lucas' First Amended Answer to the Fifth Amended Complaint is SUSTAINED-in-part with Leave to Amend.

This case involves a dispute over land lying between the respective real property of Plaintiff Teg Partners, LLC ("Teg") on the one hand and Defendants Brad J. Lucas and Melanie Lucas (the "Lucases") on the other. The Fifth Amended Complaint (the "5AC") alleges that the strip of land is a paper street ("Hermosa Avenue") per a subdivision map recorded on August 5, 1907. (See Jul. 14, 2025 Fifth Amended Complaint ("5AC"), ¶¶ 11–13, Exhs. 4–5.)

The 5AC also alleges that the strip of land (hereafter, the "Disputed Property") was the subject of a prior action—*Tejinder Singh, et al. v. Erica Steiner*, case no. 18CIV01684 (the "Steiner Action")—in which Teg, as plaintiff, stipulated to a default judgment granting it an implied easement for ingress and egress over the entirety of the Disputed Property. (5AC, ¶ 16, Exh. 6.) The defendant in the Steiner Action is alleged to be the Lucases' predecessor-in-interest. (*Id.*, at ¶ 16.)

In the present action, Teg seeks declaratory relief and injunctive relief to pave the Disputed Property in order to exercise its right of ingress and egress and develop its own parcel. (5AC, ¶¶ 17–19, 57–59, 61.) The Lucases filed a First Amended Answer ("FAA" or "Answer") to the 5AC on June 26, 2026, to which Teg now demurs.

A. Legal Standard on Demurrer to Answer

"In most respects, the demurrer to the answer ... is governed by the same rules as those applicable to the demurrer to the complaint." (5 Witkin, Cal. Proc. (6th ed. 2026) Pleading, § 1224.)

These well-defined principles include the following: "A demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice" [citation]; the allegations of the pleading demurred to must be

regarded as true [citations]; a demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading [citations], or the construction placed on an instrument pleaded therein [citations], or facts impossible in law [citation], or allegations contrary to facts of which a court may take judicial knowledge. [Citations.]

(*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) However unlike a demurrer to a complaint, on a demurrer to an answer “the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” *Id.* at 733. This is the same standard applied by the Court of Appeal when it stated that “terse legal conclusions, rather than as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint[,]’” were insufficient to plead an affirmative defense in *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.

B. Sufficiency of Factual Allegations in Support of Affirmative Defenses

As mentioned above, an affirmative defense must be pleaded by allegations of ultimate fact and not legal conclusions. Each of the challenged affirmative defenses are addressed below.

Second Affirmative Defense (Waiver) – there are sufficient factual allegations in referencing the acceptance of an easement explicitly for ingress and egress as a waiver. Additional details of the easement are in the 5AC Paragraph 16, which Paragraph 16 was admitted to in the Answer.

Third Affirmative Defense (Estoppel) - there are sufficient factual allegations in referencing instances of Plaintiff’s past trespass and/or loitering on Defendants’ property, and again the acceptance of an easement explicitly for ingress and egress as a waiver. Additional details of the easement are in the 5AC Paragraph 16, which Paragraph 16 was admitted to in the Answer.

Fourth Affirmative Defense (Laches) – there are sufficient factual allegations in referencing faded memories, unavailable witnesses, and/or loss of documents regarding the quitclaim deed by Lyle Church. Additional details of the quitclaim by Lyle Church are in the 5AC ¶ 31, Exh. 9 and elsewhere in the 5AC. In this regard, while ¶ 31 of the 5AC was not answered due to a prior demurrer ruling, the allegations were incorporated by reference. 5AC, ¶¶ 56 and 60. The Court is thus able to consider and/or take judicial notice (Evid. Code § 452(h)) of the Exh. 9 Lyle Church Quitclaim Deed recorded on June 6, 2007, a recording date from almost 20 years ago, such that laches may apply.

Fifth Affirmative Defense (Consent and Authorization) - there are sufficient factual allegations in referencing the acceptance of an easement explicitly for ingress and egress as a waiver. Additional details of the easement are in the 5AC Paragraph 16, which Paragraph 16 was admitted to in the Answer. Further the referenced agreement, can also be a consent or authorization, and not an actual contract as argued by Plaintiff.

Sixth Affirmative Defense (Unclean Hands) - there are sufficient factual allegations in referencing instances of Plaintiff's past trespass and/or loitering on Defendants' property, and again the acceptance of an easement explicitly for ingress and egress as a waiver. Additional details of the easement are in the 5AC Paragraph 16, which Paragraph 16 was admitted to in the Answer.

Eighth Affirmative Defense (Preemption and/or Compliance with Law) - demurrer is sustained as this defense cited no specific law, nor any ultimate facts.

Ninth Affirmative Defense (Non-joinder/Misjoinder) – demurrer is sustained as this defense cited no ultimate facts, to wit, potentially responsible parties are not identified.

Twelfth Affirmative Defense (Balancing of Convenience/Relative Hardship) – there are sufficient factual allegations in this defense. Plaintiff's main argument is that the 5AC "does not contain a cause of action for nuisance." Motion, pg. 15, line 1. That is correct, but Plaintiff also mis-cites the defense as it is not a defense entitled "Nuisance and Relative Hardship." Motion, pg. 14, line 12. Instead, the defense in its body refers to "the condition alleged by Plaintiff to be a nuisance." Answer, pg. 10, lines 4-5. The complaint then refers to an actual controversy, in part, that Plaintiff claims the right to have vehicular access to the Hermosa Avenue Segment, but Defendants have refused the request for vehicular access, which dispute appears to be the referenced nuisance. 5AC, ¶¶ 19 and 57. Factual allegations are then made that Plaintiff's property has access to a public road without the easement.

C. Requirement to Identify Cause of Action

Teg also contends that the challenged affirmative defenses do not "refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished" as required by statute. (Code Civ. Proc., § 431.30, subd. (g).) Notably, Teg offers no caselaw establishing when a pleading does or does not meet this requirement. However, as the Lucases point out—albeit without crystal-clear clarification—each defense states that Teg's 'claims' are barred, presumably referring to both the remaining causes of action in the 5AC. This is sufficient. (See also Cal. Rules of Court, rule 2.112 [setting forth the requirements for pleading separate defenses & omitting any requirement that numbered causes of action be identified].)

D. Conclusion

Accordingly, the demurrer is SUSTAINED as to the eighth and ninth affirmative defenses set forth in the FAA and OVERRULED as to the remainder. Leave to amend is GRANTED as a matter of fairness. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) If Defendant chooses to amend, the amendment is due 10 days after service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

25-CIV-00184 MARIA J. MIRANDA HENAO VS. TOYOTA MOTOR SALES, U.S.A., INC.

MARIA J. MIRANDA HENAO
TOYOTA MOTOR SALES, U.S.A., INC.

DONALD E MAHNKE
MICHAEL J HURVTIZ

Defendant's Motion to Compel Vehicle Inspection and Request for Sanctions

TENTATIVE RULING:

Defendant Toyota Motor Sales, U.S.A., Inc.'s ("Toyota") Motion to Compel Vehicle Inspection and Request for Sanctions is GRANTED.

Summary of Facts

This is an automotive warranty action where Plaintiff Maria J. Miranda Henao ("Plaintiff") seeks restitution for a 2024 Toyota RAV4 (the "Subject Vehicle") pursuant to the Song-Beverly Consumer Warranty Act. Plaintiff filed this action on January 9, 2025. On February 27, 2025, Defendant Toyota served a Notice of Vehicle Inspection for May 12, 2025. Critchlow Decl., ¶ 2, Exh. A. On April 23, 2025, Plaintiff served objections. Critchlow Decl., ¶ 3, Exh. B. Thereafter, Defendant attempted to meet and confer at least on six different occasions, where Plaintiff inexplicably did not respond. Critchlow Decl., ¶¶ 4-8, 11, Exh.'s C and E.

After the filing of the Motion, an Informal Discovery Conference ("IDC") was held before the Civil Commissioner. Relevantly, at the IDC Plaintiff finally agreed that the deposition could be scheduled for November 17, 2026 and the vehicle inspection for December 10, 2026. Minute Order, 08/11/2026. However, Defendant maintained these motion to ensure compliance and to seek sanctions. The motion is unopposed.

Legal Discussion

A party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action. Code of Civil Procedure ("CCP") Section 2017.010(a). For discovery purposes, information should be regarded as "relevant to the subject matter" if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof. (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288, emphasis added.); *in accord*, *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.

As Plaintiff has already agreed to the vehicle inspection on a date certain, the motion is GRANTED and Plaintiff is now ORDERED to produce the subject vehicle for inspection on December 10, 2026.

Where a motion to compel inspection is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Cal. Code of Civ. Proc. Section 2031.310(c)).

Defendant has requested monetary sanctions for having to bring this motion, and sanctions are allowed under the code but are in the discretion of the Court. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 791. “The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” *Id.* at 791(citations omitted). Nevertheless, the court is authorized to award as sanctions the moving party's “reasonable expenses,” including attorney fees for time spent in research and preparation of the motion and court time in connection with the motion. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.) The discovery motions were accompanied by a proper declaration of counsel establishing the claim for attorney’s fees and costs, at reasonable hourly rates.

Defendant requests monetary sanctions of \$750.00 jointly and severally against Plaintiff and its counsel Quill & Arrow, LLP, which is reasonable, and which sanctions are now GRANTED to be paid to Defense counsel within 30 days of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

25-CIV-00184 MARIA J. MIRANDA HENAO VS. TOYOTA MOTOR SALES, U.S.A., INC.

MARIA J. MIRANDA HENAO
TOYOTA MOTOR SALES, U.S.A., INC.

DONALD E MAHNKE
MICHAEL J HURVTIZ

Defendant's Motion to Compel Plaintiff's Deposition and Request for Sanctions

TENTATIVE RULING:

Defendant Toyota Motor Sales, U.S.A., Inc.'s ("Toyota") Motion to Compel Plaintiff's Deposition and Request for Sanctions is GRANTED.

Summary of Facts

This is an automotive warranty action where Plaintiff Maria J. Miranda Henao ("Plaintiff") seeks restitution for a 2024 Toyota RAV4 (the "Subject Vehicle") pursuant to the Song-Beverly Consumer Warrant Act. Plaintiff filed this action on January 9, 2025. On February 27, 2025, Defendant Toyota served a Notice of Deposition for Plaintiff's deposition for April 30, 2025. Critchlow Decl., ¶ 2, Exh. A. On April 23, 2025, Plaintiff served objections. Critchlow Decl., ¶ 3, Exh. B. Thereafter, Defendant attempted to meet and confer at least on six different occasions, where Plaintiff inexplicably did not respond. Critchlow Decl., ¶¶ 4-8, 11, Exh.'s C and E.

After the filing of the Motion, an Informal Discovery Conference ("IDC") was held before the Civil Commissioner. Relevantly, at the IDC Plaintiff finally agreed that the deposition could be scheduled for November 17, 2026 and the vehicle inspection for December 10, 2026. Minute Order, 08/11/2026. However, Defendant maintained these motion to ensure compliance and to seek sanctions. The motion is unopposed.

Legal Discussion

A party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action. Code of Civil Procedure ("CCP") Section 2017.010(a). For discovery purposes, information should be regarded as "relevant to the subject matter" if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof. (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288, emphasis added.); *in accord*, *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.

As Plaintiff has already agreed to her deposition on a date certain, the motion is GRANTED and Plaintiff is now ORDERED to appear for her deposition on November 17, 2026.

Where a motion to compel a deposition is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Cal. Code of Civ. Proc. Section 2025.450(g)(1).)

Defendant has requested monetary sanctions for having to bring this motion, and sanctions are allowed under the code but are in the discretion of the Court. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 791. “The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” *Id.* at 791(citations omitted). Nevertheless, the court is authorized to award as sanctions the moving party's “reasonable expenses,” including attorney fees for time spent in research and preparation of the motion and court time in connection with the motion. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.) The discovery motions were accompanied by a proper declaration of counsel establishing the claim for attorney’s fees and costs, at reasonable hourly rates.

Defendant requests monetary sanctions of \$750.00 jointly and severally against Plaintiff and its counsel Quill & Arrow, LLP, which is reasonable, and which sanctions are now GRANTED to be paid to Defense counsel within 30 days of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

25-CIV-02117 CONSUELO QUO VS. PRENUVO CLINIC CA 1, ET AL

CONSUELO QUO
PRENUVO CLINIC CA 1

JOSHUA S. MARKOWITZ
ALEXANDRA N. PAPLOS

Plaintiff's Motion for Trial Preference

TENTATIVE RULING:

Plaintiff Consuelo Quo's Motion for Trial Preference is GRANTED pursuant to Cal. Code of Civ. Proc. ("CCP") Section 36(a).

Cal. Code of Civ. Proc. Section 36 establishes a mandatory trial preference for civil actions where a plaintiff is over 70 years of age, has a substantial interest in the action and the health of the party is such that a preference is necessary to prevent prejudice. CCP § 36(a)(1-2). Here, Plaintiff's daughter's declaration establishes that Plaintiff is 93 years old. Stacey Quo Decl, ¶ 2.

In addressing this statutory language for a preference motion under Section 36(a) for parties over 70 years of age, courts have consistently held the statutory preference to be "mandatory and absolute." (See, e.g., *Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082.) California courts have emphasized that such mandatory preferences represent "a substantive public policy concern which supersedes" considerations of court convenience or other litigants' interests. (*Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689. The trial court has no discretion to balance competing interests when a party qualifies for mandatory preference. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529.).

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party."

CCP § 36(f).

Per the express statutory language and case precedent, this Court does have the full 120-day period as to when to set the trial date. CCP § 36(f); *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 93 ("section 36, subdivision (e) allows the trial court to set a trial date up to 120

days from hearing on the motion for preference”); *Pabla v. Superior Court* (2023) 90 Cal.App.5th 599, 603 (“having granted trial preference, respondent was required to set trial within 120 days thereafter”).

Defendant does not oppose the motion, but requests that trial be set near the outermost or latest date within the statutory period to allow for completion of discovery and trial preparation. Def. Response, pg. 3, lines 19-27. Plaintiff agrees to accept “a date as late in the statutory period as possible. The final date is January 18, 2027. Plaintiff will accept January 11, 2027 as the trial date.” Plaintiff’s Reply, pg. 2, lines 1-2. The Court will accept the proposed date.

Jury Trial is set for January 11, 2027 at 2:00 p.m., in-person, Courtroom L, Northern Branch in South San Francisco, CA. In the absence of other information, Court is setting this as a 5-day Jury Trial.

Pretrial Conference is set for December 7, 2026 at 10:00 a.m., in-person, Courtroom L, Northern Branch.

Court will issue its PreTrial Order No. 1, which is also posted on the department civil web page for review and for all parties to comply with.

Mandatory Settlement Conference (“MSC”) is scheduled for November 20, 2026 at 9:00 a.m.

The Court notes that this case was not given an ADR Referral which is a standard practice. Parties are encouraged to proceed to private ADR forthwith.

Parties are advised that Judge Mau may be willing to vacate this MSC by proposed Stipulation and Order, if the parties can agree on a *full-day, in-person, Mediation* with a mutually agreed upon private Mediator that is completed before the Pretrial Conference.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-04764 MARIA MANJARREZ, ET AL VS. JOSE CONSTANTINO PANAMENO, ET
AL

MARIA MANJARREZ
JOSE CONSTANTINO PANAMENO

REUBEN J. DONIG
MICHAEL E. ROGASKI

Plaintiffs' Motion to Compel Discovery Responses to Form Interrogatories and Request for Documents; to Deem as Admitted Unresponded-to Matters Covered Plaintiffs' Request for Admissions, and for Sanctions

TENTATIVE RULING:

For the reasons stated below, Plaintiffs Maria and Jesus Manjarrez' motion to compel Defendants Jose Constantino Panameo and Ana Panameno to serve responses to Plaintiffs' Form Interrogatories and Requests for Production of Documents ("RFPs"), and to deem the matters in Plaintiffs' Requests for Admission ("RFAs") admitted; and to compel Defendant Jose Constantino Panameo's deposition, which also seeks monetary sanctions, is GRANTED.

Background.

This case arises from an alleged July 2, 2023 automobile collision. On Oct. 16, 2025, Plaintiffs served, on each of the two defendants, Form Interrogatories, Requests for Production of Documents ("RFPs"), and Requests for Admission ("RFAs"). Initial responses were due in Nov. 2025. For several months after Nov. 2025, Defendants' counsel requested extensions of time to provide responses, which Plaintiffs' counsel repeatedly granted. (Donig Declaration.) Plaintiffs' counsel gave a final extension until June 8, 2026, and informed Defendants' counsel that if responses were not served by June 8, 2026, Plaintiff would file a motion to compel the discovery responses, and would seek sanctions. No responses were served by June 8, 2026.

Plaintiffs also served a Notice of Deposition for Defendant Jose Constantino Panameo's deposition, and scheduled it to take place on Dec. 15, 2025. (Donig Decl., Ex. 2.) Plaintiffs offer evidence that despite numerous attempts to have Defendant Jose Constantino Panameo appear for deposition, he still has not appeared.

On June 12, 2026, Plaintiffs filed this motion. It appears that as of early Sept. 2026, Defendants still have not served requested the discovery responses, and Defendant Jose Constantino Panameo still has not agreed to appear for a deposition.

Findings.

Plaintiffs' motion to compel Defendants to serve responses to Plaintiff's Form Interrogatories and RFPs is GRANTED. (Code Civ. Proc. §§ 2030.290; 2031.300.) All objections are waived. (Code Civ. Proc. §§ 2030.290(a); 2031.300(a).) Both Defendants shall serve responses within ten (10) days of being served with notice of entry of this Order.

Defendants' Opposition brief explains that defense counsel has been unable to contact Defendants for an extended period of time, which has prevented defense counsel from serving the discovery responses. However, this argument is not supported by any declaration or other evidence. Even if it were, the Opposition cites no authority suggesting that defense counsel's past inability to communicate with his clients constitutes a legitimate excuse, or any type of defense, for Defendants' failure to respond to Plaintiffs' discovery requests.

Plaintiffs' motion to deem the matters set forth in the RFAs admitted is GRANTED. (Code Civ. Proc. § 2033.280(c).) Those matters are deemed admitted.

Plaintiffs' motion to compel the deposition of Defendant Jose Constantino Panameo is GRANTED. Again, although Defendants' counsel inability to communicate with his clients may *explain why* Defendants have not responded to, or participated in, discovery, it does not *excuse* their failure to do so. Compliance is mandatory under the code. Defendant Jose Constantino Panameo shall appear for deposition within thirty (30) days of defense counsel being served with notice of entry of this Order or such other date as chosen by Plaintiff's counsel.

Plaintiffs' request for monetary sanctions is GRANTED. Defense counsel contends that sanctions should not be awarded on the grounds that the request was improperly noticed. Code Civ. Proc. § 2023.040 provides: "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought."

However, here the Notice of Motion provides in its title caption that it is seeking sanctions, and the motion seeks "sanctions in the amount of not less than \$2,000, or such greater amount as may be shown at the time of hearing." Notice of Motion, pg. 4, lines 23-24. Thus it is quite clear that monetary sanctions are sought. The motion is also directly addressed "To Defendants JOSE CONSTANTINO PANAMENO; ANA PANAMENO and their attorney of record, Jon Brick of the law firm of Shulz, Brick, and Rogaski." Notice of Motion, pg. 1, lines 17-18. Thus the defendant parties and attorney against whom sanctions are sought were clearly identified. A party can seek sanctions within the body of even an opposition to a discovery motion. Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:1991. Further, a separate motion for sanctions is also not required. *Dalessandro v. Mitchell* (2019) 43 Cal.App.5th 1088, 1092.

Plaintiff has thus requested monetary sanctions for having to bring this motion, and sanctions are allowed under the cited codes but are in the discretion of the Court. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 791. "The principle

of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” *Id.* at 791(citations omitted). Nevertheless, the court is authorized to award as sanctions the moving party's “reasonable expenses,” including attorney fees for time spent in research and preparation of the motion and court time in connection with the motion. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.) The discovery motions were accompanied by a proper declaration of counsel establishing the claim for attorney’s fees, at a reasonable hourly rate, though the Court is using its discretion to reduce the total award of sanctions to a reasonable amount.

As attorney Brick may have lost contact with his clients, the Court finds that sanctioning him or his firm would be unjust at this time. However, Plaintiff is entitled to sanctions and the Court awards sanctions of \$1,500 against the individual Defendants, payable within 30 days of service of the Order after hearing.

Case Management

Plaintiff’s Reply brief indicated contemplation of a trial preference motion, which the Court advises is unnecessary as the Court can instead readily set a trial date. Accordingly, the Court hereby vacates the OSC re: ADR scheduled for January 28, 2027.

In lieu of that hearing, the Court hereby notices and sets a Case Management Conference / Trial Setting Conference (“CMC/TSC”), in Dept. 20 – Courtroom L Northern Branch, for January 4, 2027 at 9:00 a.m. If counsel have a conflict with that date, they may appear to discuss alternate dates for the CMC/TSC.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

26-CIV-01579 AMPHLETT PROPERTY LLC VS. JIHANE HANNA BECHWATI, ET AL

AMPHLETT PROPERTY LLC
JIHANE HANNA BECHWATI

SCOTT TALKOV
PEIYU (PAULINA) LI

Defendants' Motion to Determine Value and Send Buyout Notice

TENTATIVE RULING:

The Motion to Determine Value and Send Buyout Notice by Defendants Nicolas Bechwati and Jihane Hanna Bechwati and Defendant/Cross-Complainant EPS, Inc. (collectively “Defendants”) is DENIED WITHOUT PREJUDICE in its entirety as premature.

Plaintiff Amphlett Property LLC (“Plaintiff”) brings this action seeking partition of commercial real property located at 301-307 N. Amphlett Blvd., San Mateo, CA, 94401 (“property”). The Complaint alleges that Plaintiff owns an undivided 40% interest as tenants in common with Defendant Nicolas Bechwati, who is alleged to own an undivided 35% interest in the property, and Defendant Jihane Hanna Bechwati, who is alleged to own an undivided 25% interest in the property. The Complaint seeks partition of the property as well as back rent and future rent from EPS, Inc., a tenant at the property.

Defendants bring this Motion asking the court to: (1) appoint either Gregory D. Hansen, MAI, or Clinton Freeman, MAI, as appraiser to determine the fair market value of the property, (2) order Plaintiff to pay 40% of the appraisal costs and set a deadline for their payment within 10 business days of the hearing on this Motion, (3) set a hearing to determine the property’s fair market value following completion of the appraisal, and (4) issue the statutory buyout notice after the valuation hearing. Defendants seek this relief based on the Partition of Real Property Act (“PRPA”). (Code Civ. Proc. §§ 874.311, et seq.) The PRPA applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property. (Code Civ. Proc., § 874.311, subd. (b).)

However, the PRPA is found in Chapter 10 (Code Civ. Proc., §§ 874.311, et seq.) of Title 10.5, Partition of Real and Personal Property (Code Civ. Proc., §§ 872.010, et seq.). The PRPA supplements the other provisions of Title 10.5. (Code Civ. Proc., § 874.313, subd. (b) [“This chapter supplements the other provisions of this title and, if an action is governed by this chapter, this chapter shall control over any provisions of this title that are inconsistent with this chapter.”].)

Thus, a court shall determine at trial whether a plaintiff has the right to partition. (Code Civ. Proc., § 872.710, subd. (a).) “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (Code Civ. Proc., § 872.720, subd. (a).) An interlocutory judgment includes two elements -- a determination of the parties’ interests in the property and an order granting the partition. (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143.) The Court notes that an alternative to trial, is a stipulation for entry of an interlocutory judgment if parties can so agree (however that is not before the Court on this motion)

In any event, the manner of partition is to then be decided when or after the parties’ ownership interests are determined, but not before. (*Ibid.*) There are three methods of partition: (1) a physical division of the property (Code Civ. Proc., §§ 873.210-873.290); (2) a sale of the property and a division of the proceeds (Code Civ. Proc., §§ 873.510-873.850); and (3) a partition by appraisal whereby one cotenant acquires the interests of the other cotenants based on a court ordered and supervised appraisal (Code Civ. Proc., §§ 873.910-873.980). (Miller & Starr, 4 Cal. Real Est. (4th ed.), § 11:15.)

As such, the court must first determine the right to partition at trial (or by stipulation). No interlocutory judgment has been entered at this time. Defendants also have not provided any authority that an interlocutory judgment is not required as a condition precedent to the relief requested. Therefore, this motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

26-CIV-01579 AMPHLETT PROPERTY LLC VS. JIHANE HANNA BECHWATI, ET AL

AMPHLETT PROPERTY LLC
JIHANE HANNA BECHWATI

SCOTT TALKOV
PEIYU (PAULINA) LI

Plaintiff/Cross-Defendant's Anti-SLAPP Motion to Strike First Amended Cross-Complaint

TENTATIVE RULING:

The Anti-SLAPP Motion to Strike First Amended Cross-Complaint (the "Motion") brought by Plaintiff and the other Cross-Defendants (collectively, "Movants" or "Cross-Defendants") is GRANTED as to the first two causes of action of the Cross-Complaint.

Background

Plaintiff Amphlett Property LLC ("Plaintiff") brings this action seeking partition of commercial real property located at 301-307 N. Amphlett Blvd., San Mateo, CA, 94401 ("property"). The Complaint alleges that Plaintiff owns an undivided 40% interest as tenants in common with Defendant Nicolas Bechwati, who is alleged to own an undivided 35% interest in the property, and Defendant Jihane Hanna Bechwati, who is alleged to own an undivided 25% interest in the property. The Complaint seeks partition of the property as well as back rent and future rent from EPS, Inc., a tenant at the property.

Defendant EPS, Inc. ("Tenant"), is owned and operated by Defendant Nicolas Bechwati, and leases or currently occupies the Property, though there has been no new lease, extension, written modification, nor rent adjustment since the written lease governing its tenancy expired in 2017. Defendant Nicolas Bechwati has allegedly ignored Plaintiff's objections to Tenant's nonpayment of rent and payment of below-market rent. The Court notes that Defendant Nicolas Bechwati's ownership and control of both the Property and Tenant creates a fairly clear conflict of interest.

Defendant Tenant cross-complained against Plaintiff/Cross-Defendant Amphlett Property LLC ("Plaintiff"), its member and manager Cross-Defendant Carol Weinbrock, and its other member, Cross-Defendant Jennifer Orman, alleging *inter alia* that Tenant, which performs engineering work for residential, commercial, and government clients, including the City of San Mateo (the "City"), had a right under the written lease to notice and an opportunity to purchase the Property before it could be offered to another. In December 2025, it is alleged that although Plaintiff's agent knew or had reason to know that the City was Tenant's client, Plaintiff's agent contacted the City to inquire about alleged Code violations involving the Property. During the City's involvement with the Property, its employee asked Defendant Nicolas Bechwati whether the Property Tenant's business was being sold. Tenant was forced to expend resources to deal with the City's inspection activity, business disruption, uncertainty regarding its continued operations

and possession, and reputational risk concerning its regulatory compliance. Tenant alleges that Plaintiff involved the City with the Property in an attempt to force a sale or other disposition of the Property, rather than to preserve Tenant's tenancy, business operations, or quiet possession. Further, Plaintiff's Complaint seeks relief that would interfere with Tenant's possession of the Property, its personal property, and its business operations, and would bypass Tenant's rights under the lease and related agreements, including that of first offer.

Through the Motion, Movants move to strike the first two causes of action of the First Amended Cross-Complaint ("FACC"), and request award of attorney's fees in the amount of \$9,563.50.

Legal Standards Governing the Motion

The "anti-SLAPP statute is designed to protect defendants from meritless lawsuits that might chill the exercise of their rights to speak and petition on matters of public concern." (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 883-884 (citations omitted).) However, the "anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 (*Baral*).)

The Code of Civil Procedure provides that a cause of action shall be subject to a special motion to strike (herein, also called an "anti-SLAPP motion") when that cause of action arises from an act in furtherance of the right to petition or free speech, unless the Court determines that the plaintiff has established a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1).) The Court engages in a two-step process in evaluating an anti-SLAPP motion: determining first whether the moving defendant bears its burden of establishing that the challenged allegations arise from protected activity; and second, whether the plaintiff has then met its burden of demonstrating that the claims have at least "minimal merit." (*Park v. Bd. of Trustees of Calif. State Univ.* (2017) 2 Cal.5th 1057, 1061 (*Park*).) "If the plaintiff cannot make this showing, the court will strike the claim." (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 (*Bonni*), citing *Park*, *supra*.)

In evaluating the protected nature of the act under the first prong of the anti-SLAPP analysis, the Court shall look to the pleadings and supporting or opposing affidavits stating the acts upon which the liability or defense is based. (Code Civ. Proc., § 425.16, subd. (b)(2); *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) The defendant need only make a threshold *prima facie* showing that the defendant's acts "arise[] from" constitutionally protected free speech or petition activity. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 456.)

On the second prong of anti-SLAPP analysis, the Court looks to whether the plaintiff has met his burden in establishing that the claims have at least minimal merit:

This court and the Courts of Appeal, noting the potential deprivation of jury trial that might result were [section 425.16 and similar] statutes construed to require the plaintiff first to *prove* the specified claim to the trial court, have instead read the statutes as requiring the court to determine only if the plaintiff has stated and substantiated a legally sufficient claim.

(*Briggs v. Eden Council For Hope & Opportunity* (1999) 19 Cal.4th 1106, 1123 (*Briggs*))

(citation omitted).) As the Supreme Court of California explains:

For the benefit of litigants and courts involved in this sometimes difficult area of pretrial procedure, we provide a brief summary of the showings and findings required by section 425.16(b). At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, *unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.*

(*Baral, supra*, 1 Cal.5th 376, 396 (emphasis added).)

*Movants Have Made a Prima Facie Showing Satisfying the First Prong
of the Anti-SLAPP Analysis.*

The first two causes of action clearly are based on the alleged wrongfulness of Plaintiff's having brought the instant partition action, and on Movants' having contacted the City regarding a potential code violation at the Property. As to the former, filing a lawsuit constitutes protected activity under the governing statute. (*Callanan v. Grizzly Designs, LLC* (2022) 81 Cal.App.5th 517, 526 (*Callanan*).) Plaintiff's intent in bringing this action is irrelevant to an anti-SLAPP analysis. (*Callanan, supra*, 81 Cal.App.5th 517, 530-31.) In addition, as the Supreme Court of California explains, "We contemplate no communication that is more clearly protected by the litigation privilege than the filing of a legal action." (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1249.)

As to the latter under the anti-SLAPP statute, "the Legislature's intent consistently has been to protect all direct petitioning of governmental bodies (including, as relevant here, courts and administrative agencies) and petition-related statements and writings." (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1121 (*Briggs*).) Also, the Supreme Court of California explains that "the privilege established by [Civil Code] section 47(b) applies, in general, to a 'communication to an official agency which is designed to prompt action[.]'" (*Hagberg v. Cal. Federal Bank* (2004) 32 Cal.4th 350, 370 (*Hagberg*) (citation omitted) (superseded by statute on other grounds, which create an exception for filing a false police report).)

Moreover:

When moving to strike a cause of action under the anti-SLAPP statute, a defendant that satisfies its initial burden of demonstrating the targeted action is one arising from protected activity faces no additional requirement of proving the plaintiff's subjective intent. Nor need a moving defendant demonstrate that the action

actually has had a chilling effect on the exercise of such rights.

(*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88 (*Navellier*) (citations omitted).) Since the focus of the anti-SLAPP statute is the nature of the movant's activity and not the form of the challenged cause of action, allegation that the activity constitutes breach of contract does not affect whether the activity falls within the protection of the anti-SLAPP statute. (*Navellier, supra*, 29 Cal.4th 82, 90-93.)

Movants have met their burden of establishing that the challenged allegations arise from protected activity.

Cross-Complainants Fail to Meet Their Burden on the Second Prong.

As discussed above, Movants' activity of which Cross-Complainants complain is protected by the anti-SLAPP statute. "The litigation privilege is also relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense a plaintiff must overcome to demonstrate a probability of prevailing." (*Flatley, supra*, 39 Cal.4th 299, 323 (citations omitted).) This is the case here, where Movants' protected activities are the gravamen of the challenged causes of action. Indeed, Cross-Complainants cite the partition as an unacceptable interference with their use of the co-owned Property. Further, Tenant's evidence, the Declaration of Nicolas Bechwati in Opposition, essentially explains why Movants' having contacted the City about alleged Code violations, and also the partition action, raised the Tenant's owner and operator's concerns that he might not be able to operate his business from the Property.

The Opposition argues misleadingly as though Movants attempt to use the partition action solely and retroactively as the basis for the Motion, without addressing Movants' assertions that Plaintiff's contacting the City is protected activity as well. Tenant asserts that:

EPS also has evidence supporting the alleged interference. The City of San Mateo was an EPS municipal customer. Amphlett's agent approached the City concerning alleged code issues at EPS's business premises; the City thereafter inspected the Property; and a Public Works employee asked Nicolas whether the Property or EPS's business was being sold. EPS alleges that these circumstances resulted in business disruption, uncertainty concerning continued occupancy, customer-relationship concerns, and expenditures of time and resources.

(Opp., 13:27-14:4.) As discussed *supra*, the interference complained of falls within the scope of the litigation privilege (*Briggs, supra*, 19 Cal.4th 1106, 1121; *Hagberg, supra*, 32 Cal.4th 350, 370), and thus presents a substantive defense which must be overcome to demonstrate a probability of prevailing. (*Flatley, supra*, 39 Cal.4th 299, 323 (citations omitted).) That is, even if the challenged causes of action are based entirely on activity protected under the anti-SLAPP statute, they may stand under the second prong of the analysis if the opponent shows a minimum probability that they could succeed on the merits. Nonetheless, no such showing can be made here because the activity complained of is *also* protected by the litigation privilege (Civ. Code, § 47, subd. (b)).

Accordingly, the anti-Slapp Motion is GRANTED, and the first two causes of action (1. Negligence and 2. Breach of the Covenant of Quiet Enjoyment) in the FACC are hereby stricken in their entirety.

Movants Are Entitled to Fees and Costs.

In pertinent part, the governing statute provides that, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1).)

Attorney Talkov’s declaration establishes his hourly rate of \$850 which the Court accepts as reasonable for this motion, and expenditure of 2.1 hours for the motion. He also seeks 2.3 estimated hours for review of the opposition and drafting of a reply, and .8 hours for review of the tentative ruling and appearance, for a total of 5.2 hours.

Attorney Duggan’s declaration establishes his hourly rate of 635 which the Court accepts as reasonable for this motion, and expenditure of 4.5 hours for the motion. He also seeks 2.3 estimated hours for review of the opposition and drafting of a reply, and 1.3 hours for review of the tentative ruling and appearance, for a total of 8.1 hours.

The total fee request for the above is \$9,563.50. The Court notes that the opposition brief was 19 pages and accompanying opposition declaration was 31 pages, and neither argues against the reasonableness of the hourly rate nor time spent or as estimated; further the reply brief was 14 pages, therefore the estimated time spent is also reasonable. The Court therefore GRANTS Movants’ request for fees in the amount of \$9,563.50, payable within 30 days of the Order after hearing. If this tentative is contested and parties appear for argument, then Movant’s counsel is directed to advise the Court whether the time estimated above was at least met.

Discovery Stay

The Court is aware that Defendants have filed a Motion for Protective Order Limiting Discovery that is currently set for hearing on March 26, 2027. In that regard, the parties failed to have an Informal Discovery Conference (“IDC”) before the filing of this motion, and the Court does remind the parties of that option, as an IDC before the Civil Commissioner would very well have resolved this issue without the need for motion practice.

In any event, for judicial economy, the Court will be vacating the March 26, 2027 hearing date as it is now moot, and instead addresses the dispute herein as it is directly related to this Anti-SLAPP ruling.

On July 15, 2026, Cross-Defendants filed the present Anti-SLAPP motion. Relevantly, the filing of this motion automatically stayed all discovery. CCP Section 425.16 provides in pertinent part:

(g) All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.

CCP § 425.16(g).

On July 31, 2026, Plaintiff served Defendants with a full set of discovery comprised of Form Interrogatories, Special Interrogatories, Requests for Production and Requests for Admissions (Sets One). Cornejo Decl. filed 8/31/2026, ¶¶ 5-9, Exh.'s A-D. The service of this discovery violated the automatic stay on discovery, which means Defendants had no duty to respond and no objections were waived.

As this tentative is now adjudicating the Anti-SLAPP, the discovery stay will be lifted per code. Accordingly and per Defendants' request (see, MPA iSo Mtn. for Protective Order, pg. 5, lines 20-26), Defendants' responses to this discovery will be due thirty (30) days after service of notice of entry of the order after this hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 8/UD Line 1

26-UDU-00699 RUSSELL MARSHALL, AS TEMPORARY TRUSTEE OF THE EDWARD E.
CAMPBELL REVOCABLE LIVING TRUST DATED JUNE 4, 1981 VS.
HALLEY CRUMB

RUSSELL MARSHALL, AS TEMPORARY TRUSTEE
OF THE EDWARD E. CAMPBELL REVOCABLE LIVING
TRUST DATED JUNE 4, 1981

PAUL L SEELEY

HALLEY CRUMB

PRO SE

Plaintiff's Motion to Compel Discovery from Defendant

TENTATIVE RULING:

Plaintiff's Motion to Compel Discovery from Defendant is GRANTED.

Summary of Facts

This is a residential unlawful detainer arising from the service of a three-day notice to pay rent or quit. Plaintiff moves here to compel defendant to respond to discovery.

Procedural History

On July 30, 2026, Plaintiff served Defendant with Form Interrogatories-General, Set One, Form Interrogatories- Unlawful Detainer, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admissions, Set One. Defendant served responses to the special interrogatories and requests for admission 1-7. However, to date, no responses to Plaintiff's form interrogatories, requests for production or requests for admission 8-53 have been received. Consequently, CCP §2030.290(b) and CCP §2031.300(b) provide for an order compelling responses to the interrogatories and requests for production of documents, while with respect to the requests for admission, CCP 2033.280(b) permits the court to enter an order deeming the matters in the requests to be deemed admitted.

Defendant has filed an opposition to the motions, and there is an attached Proof of Service ("POS"). However, the POS is defective in that it indicates her opposition and declaration were served on September 14, 2026 by multiple methods including personal service, email and some other unidentified method permitted in unlawful detainer proceedings. It does not state the address of the person serving the documents nor does it state the address where the documents were served. No email address or physical address is stated. Therefore, it is unclear whether or not Plaintiff's attorney was actually even served.

Analysis

Discovery responses are mandatory for the various types of discovery allowed or at-issue. See, CCP §§ 2017.010, 2030.210, 2031.210 and 2033.210. Due to the complete failure to respond, all objections have been waived. CCP §§ 2030.290, 2031.300 and 2033.280. Discovery responses must be properly verified (CCP §§ 2030.250, 2031.250 and 2033.240), and unverified responses are tantamount to not responding at all. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635-636.

Plaintiff's motion to compel is granted. Defendant shall provide verified responses and responsive documents, without objection, to plaintiff's Form Interrogatories-General, Set One, Form Interrogatories- Unlawful Detainer, Set One, and Requests for Production of Documents, Set One, within five days.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 9/UD Line 2

26-UDU-00699 RUSSELL MARSHALL, AS TEMPORARY TRUSTEE OF THE EDWARD E.
CAMPBELL REVOCABLE LIVING TRUST DATED JUNE 4, 1981 VS.
HALLEY CRUMB

RUSSELL MARSHALL, AS TEMPORARY TRUSTEE
OF THE EDWARD E. CAMPBELL REVOCABLE LIVING
TRUST DATED JUNE 4, 1981

PAUL L SEELEY

HALLEY CRUMB

PRO SE

Plaintiff's Motion to Deem Requests for Admission Admitted Against Defendant

TENTATIVE RULING:

Summary of Facts

This is a residential unlawful detainer arising from the service of a three-day notice to pay rent or quit. Plaintiff moves here to compel defendant to respond to discovery.

Procedural History

On July 30, 2026, Plaintiff served Defendant with Form Interrogatories-General, Set One, Form Interrogatories- Unlawful Detainer, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admissions, Set One. Defendant served responses to the special interrogatories and requests for admission 1-7. However, to date, no responses to Plaintiff's form interrogatories, requests for production or requests for admission 8-53 have been received. Consequently, CCP §2030.290(b) and CCP §2031.300(b) provide for an order compelling responses to the interrogatories and requests for production of documents, while with respect to the requests for admission, CCP 2033.280(b) permits the court to enter an order deeming the matters in the requests to be deemed admitted.

Defendant has filed an opposition to the motions, and there is an attached Proof of Service ("POS"). However, the POS is defective in that it indicates her opposition and declaration were served on September 14, 2026 by multiple methods including personal service, email and some other unidentified method permitted in unlawful detainer proceedings. It does not state the address of the person serving the documents nor does it state the address where the documents were served. No email address or physical address is stated. Therefore, it is unclear whether or not Plaintiff's attorney was actually even served.

Analysis

Discovery responses are mandatory for the various types of discovery allowed or at-issue. See, CCP §§ 2017.010, 2030.210, 2031.210 and 2033.210. Due to the complete failure to respond, all objections have been waived. CCP §§ 2030.290, 2031.300 and 2033.280. Discovery responses must be properly verified (CCP §§ 2030.250, 2031.250 and 2033.240), and unverified responses are tantamount to not responding at all. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635-636.

Plaintiff's motion to deem matters admitted is granted. The genuineness of any documents and the truth of any matters in plaintiff's Requests for Admission 8 through 53 are deemed admitted.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
